

1 \_\_\_\_\_ BILL NO. \_\_\_\_\_

2 INTRODUCED BY \_\_\_\_\_

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4 A BILL FOR AN ACT ENTITLED: "AN ACT PROHIBITING EMPLOYERS FROM OFFERING INCENTIVES TO  
5 EMPLOYEES TO REGISTER TO VOTE; PROVIDING A PENALTY; PROVIDING DEFINITIONS; AND  
6 PROVIDING AN IMMEDIATE EFFECTIVE DATE."

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8 BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

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- 10 **NEW SECTION. Section 1. Voter registration incentives prohibited -- penalty.** (1) (a) An
- 11 employer may not compensate, either directly or indirectly, an employee for the act of registering to vote or for
- 12 assisting another individual to register to vote.
- 13 (b) The restriction under subsection (1)(a) includes offering or providing any form of compensation,
- 14 including monetary payment, bonuses, or other benefits, to an employee in exchange for registering to vote.
- 15 (c) The restriction under subsection (1)(a) also includes offering or providing any form of
- 16 compensation, including monetary payment, bonuses, or other benefits, to an employee in exchange for the
- 17 employee helping another individual to register to vote.
- 18 (d) The restriction under subsection (1)(a) does not include situations in which an employer offers
- 19 paid time off or other leave time to employees to allow them to vote in an election.
- 20 (2) An employer violating the provisions of this section shall be guilty of a misdemeanor and on
- 21 conviction shall be punished by a fine in any sum not exceeding \$1,000 for each offense.
- 22 (3) Nothing in this section may be construed to prevent employees from freely exercising their right
- 23 to vote, registering to vote, or engaging in any other lawful activity related to the electoral process. Employees
- 24 shall retain the right to participate in political activities outside of the work environment and without interference
- 25 from their employer.
- 26 (4) As used in this section, the following definitions apply:
- 27 (a) "Employee" means a person who may be permitted, required, or directed by an employer as
- 28 defined in subsection (4)(b) in consideration of direct or indirect gain or profit to engage in any employment.

1           (b)     "Employer" means an individual, partnership, association, corporation, legal representative,  
2 trustee, receiver, and trustee in bankruptcy and any common carrier by rail, motor, water, air, or express  
3 company doing business in or operating within the state.  
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5           NEW SECTION. **Section 2. Codification instruction.** [Section 1] is intended to be codified as an  
6 integral part of Title 39, chapter 2, part 3, and the provisions of Title 39, chapter 2, part 3, apply to [section 1].  
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8           NEW SECTION. **Section 3. Severability.** If a part of [this act] is invalid, all valid parts that are  
9 severable from the invalid part remain in effect. If a part of [this act] is invalid in one or more of its applications,  
10 the part remains in effect in all valid applications that are severable from the invalid applications.  
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12           NEW SECTION. **Section 4. Effective date.** [This act] is effective on passage and approval.  
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